

Anatom Solutions LLC
DBA Anatom Restoration
16658 E 2nd Ave. Aurora, CO 80011
(720) 514-3739 <http://denverrestorationservices.com>



EMERGENCY SERVICE AGREEMENT ("Contract")

PROPOSAL SUBMITTED TO: Ross Mallory

DATE: 5/11/2026

Property Owner: Ross Mallory

JOB ADDRESS: 4300 S. Alton Pl

CITY / ST / ZIP: Greenwood Village, CO 80111

Scope of Work: Water Mitigation will be performed in the affected areas listed below:
Crawlspace, Kitchen

Anatom Solutions, LLC doing business as Anatom Restoration ("Anatom") Proposes to hereby to furnish material and labor – complete in accordance with the above Scope of Work, for the sum of: \$ 3,600 ("Contract Amount") plus any supplements or for insurance proceeds plus the deductible, Payment shall be due and paid to Anatom fifteen (15) days after Anatom's completion of the Scope of Work.

Emergency Authorization – Property Owner/Authorized Agent hereby authorizes Anatom to perform emergency water extraction, humidity and moisture evaluation, demolition, structural drying, dehumidification, asbestos testing and removal, and any other services necessary to restore any or all parts of the structure to a dry condition. All detailed scopes, invoices, and estimates prepared for and signed by Property Owner/Authorized Representative become part of and included in this Contract. Property Owner/Authorized Representative understand that emergency water damage restoration is progressive and cannot be estimated. Property Owner/Authorized Representative hereby understands that he/she is responsible for all payments and approves billing of any amount required to perform the aforementioned emergency services.

All material is guaranteed to be as specified. All work to be completed in a workmanlike manner according to standard practices. Any alteration or deviation from above specifications involving extra costs will be executed only upon written orders, and will become an extra charge over and above the estimate.

This proposal may be withdrawn by Anatom if not accepted within 30 days.

Acceptance of Contract – The Contract Amount, Scope of Work and Terms and Conditions, to the extent any of these documents are attached to this Contract, they are made part of and incorporated into this Contract, and have been reviewed, understood and are satisfactory and are hereby accepted. Anatom is authorized to perform the Scope of Work as specified. Payment will be made as outlined above.

PROPERTY OWNER/AUTHORIZED REPRESENTATIVE:

Signature _____ Date _____

Name:

Signature _____ Date _____

Name:

ANATOM SOLUTIONS, LLC



By: _____ Date 5/11/2026

Name: Tom Liberman

Title: Owner

Insurance Allowance Agreement - Insurance allowance agreement is only in force and a part of this contract when signed by an authorized Anatom representative and the Property Owner/Authorized Representative.

Property Owner/Authorized Representative agrees to retain Anatom to perform the Scope of Work on the aforementioned property. It is understood and agreed that Anatom is authorized to contact the property owner's insurance carrier and meet with their representative in order to discuss the payment (as to the amount of damage to the above property) and to discuss the replacement work to be done to the property. Anatom is entitled to the agreed upon dollar amount for repair of damage, plus Anatom's profit and overhead to include any supplement claim and any material or labor increases. Anatom is further authorized to submit requests for payment to, receive direct payments from, communicate and correspond directly with the insurance company or mortgage company. To facilitate prompt payment to Anatom, Property Owner/Authorized Representative covenant to take all reasonable and appropriate steps to obtain proceeds from any insurance policy covering the loss and to promptly endorse any multi-party check issued by the insurance or mortgage company and will deliver the same to Anatom.

Property Owner/Authorized Representative is responsible for insurance deductible, if applicable, due upon execution of this Contract

For the Scope of Work performed hereunder, Property Owner/Authorized Representative shall pay Anatom. the fee specified in the invoice to be furnished by Anatom to Property Owner/Authorized Representative. Anatom will bill Property Owner/Authorized Representative; s insurance company as a courtesy, however if full payment is not paid by the insurance company or any other party deemed responsible for payment, the balance due, or total payment becomes the responsibility of Property Owner/Authorized Representative r and due upon Scope of Work being completed and the invoice being issued.

PROPERTY OWNER/AUTHORIZED REPRESENTATIVE:

Signature _____ Date _____

Name:

Signature _____ Date _____

Name:

NOTICE TO PROPERTY OWNER / AUTHORIZED REPRESENTATIVE

FAILURE OF THIS CONTRACTOR TO PAY THOSE PEOPLE SUPPLYING MATERIAL OR SERVICES TO COMPLETE THIS CONTRACT CAN RESULT IN THE FILING OF A MECHANIC'S LIEN ON THE PROPERTY WHICH IS THE SUBJECT OF THIS PURSUANT OF CHAPTER 38-22 102(3.5), COLORADO GENERAL MECHANIC'S(4) COLORADO REVISED STATUTES TO AVOID THIS RESULT YOU MAY ASK THIS CONTRACTOR FOR "LIEN WAIVERS" FROM ALL PERSONS SUPPLYING MATERIAL OR SERVICES FOR THE WORK DESCRIBED IN THIS CONTRACT. FAILURE TO SECURE LIEN WAIVERS MAY RESULT IN PAYING FOR LABOR AND MATERIALS TWICE.

***See attached for Terms and Conditions**

TERMS AND CONDITIONS

1. Contractual Conditions – These terms and conditions are not binding upon Anatom Solutions, LLC doing business as Anatom Restoration hereinafter "Contractor") until Property Owner / Authorized Representative, hereinafter "Customer" has authorized Contractor to commence work by execution of the Contract and said Contract has been ratified by Contractor's management.

2. Authorization – if the individual or entity signing the Contract is the not the owner of the property where the Scope of Work will be completed, the signor hereby represents that the property owner(s) has consented and authorized the signor to enter into this Contract.

3. Terms of Payment – Full payment is due upon completion of the Scope of Work or in accordance with the established payment schedule. Payment not received upon the completion may be deemed in default. In the event of a default, interest shall accrue from the date of default at the lesser rate of 1.5% per month (18% per annum) or the maximum rate allowed by law with a minimum charge of \$5.00 per month. In the event that Contractor employs attorneys or other experts in connection with the enforcement of this contract, then to the extent not prohibited by law, customer agrees to pay, promptly upon demand by Contractor all the attorneys' fees, expert fees, costs, and expenses incurred by Contractor with respect to said services, whether or not suit is brought.

4. Financial Assurance - Customer shall, at the written request of Contractor and before the commencement of the Scope of Work (or any time thereafter), furnish to Contractor reasonable evidence that financial arrangements have been made to fulfill the Customer's obligations to pay Contractor. Furnishing of such evidence shall be a condition precedent to commencement or continuation of the Scope of Work. After such evidence has been furnished, the Customer shall not materially vary such financial arrangements without prior written notice to Contractor.

5 Warranty -

Workmanship: In addition to any manufacturer's warranty, Contractor warrants that its work will be free from defects caused by faulty workmanship for a period of 12 months after substantial completion of the Scope of Work. Customer understands that the Scope of Work specifically excludes mold detection or mitigation.

Entire Warranty: THE WARRANTIES OF THIS PARAGRAPH ARE EXCLUSIVE AND ARE IN LIEU OF ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING (BUT NOT LIMITED TO) THE IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

Contractor's Obligation: Contractor shall correct any defects due to faulty workmanship, which appear within 12 months after substantial completion of Contractor's Scope of Work. Contractor's obligation and liability under this warranty are limited to the repair or replacement of any defective workmanship, at Customer's site, and shall not in any case extend to any loss of anticipated profits, rents, shutdown or non-operation of the facility, or other consequential loss suffered by Customer from any cause, including defects covered by this paragraph.

Exclusions: This warranty does not cover any failure or defect resulting from:

- a. Harmful chemicals, fumes, or vapors;
- b. Vandalism or physical abuse;
- c. Lack of proper maintenance and repair;
- d. Unauthorized penetrations or repairs;
- e. Customer purchase materials or equipment;
- f. Acts beyond the reasonable control of Contractor, including without limitation, sovereign acts, legislation, fire, flood, earthquake, tornado, explosions, acts of God, or other catastrophic events.

Notice: Any warranty claim must be presented in writing to Contractor within 12 months after the substantial completion of Contractor's Scope of Work, or the claim shall be waived.

6. Permits - Unless otherwise provided in this Contract, all building, construction, and other permits required for the Scope of Work shall be obtained by Contractor. Any approval of the Project that may be required by a Homeowner's Association or similar body shall be obtained by Customer. Contractor shall not be responsible for delays in the permitting process. In addition, the Contractor shall be responsible for any and all inspections or tests required by regulatory agencies or code enforcement agencies.

7. Other Charges - Customer shall pay all taxes, excises, licenses or permit fees, or other governmental charges upon the sale, use, transportation, production or installation of the material, structures, or real property additions and improvements covered by this Contract. If

Contractor is required to pay any such charges, Customer shall promptly reimburse Contractor

8. Performance Dates - The performance schedule, if stated in the Proposal, is approximate and is not guaranteed by Contractor. Contractor shall not be liable for delays in delivery, fabrication or installation when such delays result from acts of government, acts of God, adverse weather, war, riot, labor disputes, civil insurrection or any other causes beyond Contractor's reasonable control, and the date of performance shall be adjusted for any such delays. Further, Contractor shall not be responsible for delays in the project caused by the failure of material/equipment suppliers to deliver material, equipment or services in the time and manner agreed upon or in the time and manner anticipated.

9. Scope Limitations - Any material, equipment, structure or service item that is not explicitly a part of this Contract is specifically excluded from Contractor's Scope of Work. Any item which is not specifically made a responsibility of Contractor in this Contract is specifically excluded.

10. Contract Amendments - Either Contractor or Customer may propose changes to the Scope of Work, and such changes shall be incorporated into the final design as long as proper adjustments in price and schedule are made. The following contract amendment procedure is to be used for work performed for the Customer by Contractor, which is beyond the Scope of Work in the signed Proposal.

- a. As change order items are identified and before any work is done, Contractor and the Customer will review and agree on the work to be performed.
- b. A contract amendment or change order will be completed with regard to scope and price and any schedule impact. All parties involved will sign the contract amendment or change order.
- c. Contractor will perform the work and bill the Customer. For time and material work, documentation will be provided.

11. Facility/Site Conditions - Customer shall provide adequate working and storage areas, utilities, and reasonable access to the job site. Customer shall pay any additional costs incurred by Contractor as a result of variations in the conditions of the project or site (including but not limited to conditions that were not anticipated by Contractor).

12. Equipment Usage. Rentals are deemed to be at time of arrival to that midnight, regardless of the particular hour in which the rental occurs. It is understood that any portion of and day constitutes one (1) day of rental. All rentals are three (3) day minimum. The equipment is billed while on site regardless of usage.

13. Use of Specifications and Drawings - Contractor shall make no use of the specifications, drawings, or other documents except in connection with this Contract.

14. Hazardous or Other Condition - Contractor may halt the Scope of Work upon any finding of hazardous substances or unsafe conditions. Contractors will notify Customer upon the discovery of any such items. Customer must notify Contractor of any known hazardous items at the site including; asbestos, chemicals, lead, or other and Customer shall indemnify and hold harmless Contractor from and against any and all claims arising from or related to these conditions, and Contractor shall be entitled to payment from Customer for all costs, expenses and damages, including reasonable attorneys' fees and expenses, it incurs as a result of these conditions. If conditions cause delay to project for more than 1 week, Contractor may terminate this agreement.

15. Indemnification - Customer agrees to defend and indemnify Contractor against any loss or expense, including but not limited to reasonable attorneys' fees and costs, from any claim or suit against Contractor as a result of any personal injury or property damage caused by the negligence of Customer or its agents, employees, or suppliers. Contractor agrees to indemnify Customer for any loss or expense, including but not limited to reasonable attorneys' fee and costs, from any claim or suit against Customer as a result of any personal injury or property damage caused by the negligence of Contractor or its agents or employees. Neither party shall be required to indemnify the other party for the other party's negligence.

16. Customer's Insurance - Customer will procure and maintain the insurance described below: (1) Residential Homeowner's Insurance or (2) Construction All Risk, (3) Commercial General Liability, and (4) Property/Casualty Insurance.

Residential Homeowner's Insurance: On residential projects, Customer will maintain appropriate insurance from commencement of the Scope of Work until completion.

Construction All Risk Insurance: Construction All Risk Insurance or Customer's risk insurance having a "replacement value" basis, and

including flood and collapse coverage, on all equipment and activities included in the Contract and all materials and equipment intended for permanent use or incidental to the construction the Project, the cost of which is included in the Contract Amount, while in transit to the site of construction, while at temporary storage locations and while in or about the premises awaiting and during construction until the project is accepted in its entirety by the Customer. The policy will: a. Provide that all losses shall be adjusted with, and made payable to, the Customer or Contractor as their interest may appear. b. Contain no co-insurance clause. c. Contain 30-day cancellation notice. d. All deductibles shall be paid by Customer.

Commercial General Liability Insurance: On commercial construction, Customer shall maintain commercial general liability insurance from commencement of the Scope of Work until twelve (12) months after the Project is finally completed. The limit of liability under such insurance shall be at least \$1,000,000 for any one occurrence.

Property/Casualty Insurance: Customer shall purchase and maintain the usual property/casualty insurance on the property and facility in the full replacement value of the property.

Other: All monies received under any such policy shall be applied in or towards the replacement and repair of the Scope of Work that is lost, damaged or destroyed. Customer and Contractor waive all rights against each other and any of their subcontractors, agents, and employees for any damages or liability covered by Customer's insurance, including any right of subrogation.

17 Contractor's Insurance - Contractor will provide and maintain, until completion of the Scope of Work, automobile liability insurance, general liability insurance, and workers' compensation insurance. Proof of insurance will be provided if requested.

18. Limitation of Liability - IN NO EVENT SHALL CONTRACTOR BE LIABLE FOR ANY INDIRECT, SPECIAL OR CONSEQUENTIAL LOSS OR DAMAGE ARISING OUT OF ANY WORK PERFORMED FOR CUSTOMER, INCLUDING, BUT NOT LIMITED TO, LOSS OF USE, LOSS OF PROFIT, BUSINESS INTERRUPTION, INTEREST, LOSS BY REASON OF SHUTDOWN OR NON-OPERATION OF THE CUSTOMER'S FACILITIES, INCREASED EXPENSES OF OPERATION OF THE PROJECT, THE FACILITY OR OTHER FACILITIES, OR SPECIAL CONSEQUENTIAL LOSS OR DAMAGE, ARISING FROM ANY CAUSE WHATSOEVER, INCLUDING WITHOUT LIMITATION, FIRE. TO THE FULLEST EXTENT PERMITTED BY LAW, THE TOTAL LIABILITY, IN THE AGGREGATE, OF CONTRACTOR TO CUSTOMER OR ANYONE CLAIMING BY OR THROUGH CUSTOMER, FOR ANY AND ALL LIABILITIES, CLAIMS, LOSSES, EXPENSES, OR DAMAGES WHATSOEVER ARISING OUT OF OR IN ANY WAY RELATED TO CONTRACTOR'S SERVICES, THE PROJECT, OR THE CONTRACT, FROM ANY CAUSE OR CAUSES WHATSOEVER, INCLUDING WITHOUT LIMITATION, NEGLIGENCE, STRICT LIABILITY, INDEMNITY, WARRANTY, OR BREACH OF CONTRACT, SHALL NOT EXCEED THE CONTRACT AMOUNT.

19. Cancellation - Upon cancellation of this Contract, Customer shall be responsible to Contractor for all costs of cancellation, including (1) the proportionate Contract Amount for all Scope of Work completed, whether shipped or not, prior to Contractor's receipt of notice or cancellation; (2) all costs incurred by Contractor in connection with Work not completed at the time notice of cancellation is received; (3) Contractor's full anticipated fee for this Contract; (4) all expenses incurred by Contractor by reason of such cancellation, including costs arising from termination of subcontractors and vendors; and (5) Contractor's reasonable attorney's fees incurred to enforce or defend this provision. This clause shall not limit nor apply to Customer's remedies in the event Contractor shall breach or fail to perform any of the terms of this Contract; provided, however, that Contractor's liability shall not exceed the limitation of liability set forth in these Terms and Conditions.

20. Subcontractors - Customer understands and agrees that Contractor may need to utilize subcontractors or other vendors to perform certain portions of the Scope of Work or to supply materials for the Scope of Work, and Customer further agrees to cooperate with and reasonably accommodate such subcontractors and vendors.

21. Termination - By Contractor: If the Customer fails to make payment for a period of 10 days after the date the payment is due, if Customer repeatedly fails to make product selection or any decision necessary for the advancement of the Contractor's Scope of Work, or if Customer repeatedly interferes in the work, Contractor may, upon 3 days' written notice to Customer, terminate this Contract. Contractor will be entitled to recover, from the Customer, payment for the Scope of

Work executed and for loss with respect to materials, equipment, tools, and construction equipment and machinery, including overhead and profit at the rate of 20% and any other damages incurred by Contractor. After termination of this Contract, Contractor is relieved from any other contractual obligations, including all punch-list and/or warranty work.

By Customer: Customer shall have the right to terminate this Contract if Contractor defaults, persistently fails, neglects to carry out the Scope of Work in accordance with this Contract or fails to perform a provision of the Contract. Prior to termination, Customer shall give Contractor 7 days' written notice of the failures and deficiencies and Contractor shall have 7 days from receipt of said notice to cure any such failure or deficiency. If the unpaid balance of the Contract Amount exceeds costs of finishing the Scope of Work, such excess shall be paid to Contractor, but if such costs exceed such unpaid balance, Contractor shall pay the difference to Customer, subject to the limitation of liability set forth in these Terms and Conditions.

22. Waiver - Any term or provision of this Contract may be waived, or the time for its performance may be extended, by the party entitled to the benefit thereof. The failure of any party to enforce any provision of this Contract shall not be construed to be a waiver of such provision.

23. Dispute Resolution - The parties will attempt in good faith to resolve through negotiation any dispute, claim, or controversy arising out of or relating to this agreement. Any party may initiate negotiations by providing written notice in letter form to the other party, setting forth the subject of the dispute and the relief requested. The recipients of such notice will respond in writing within five business days with a statement of their position on and recommended solution to the dispute.

24. Choice of Law - This Contract is to be construed under the laws of Colorado. Any action arising out of or in connection with this Contract shall be brought in any Court of competent jurisdiction in Arapahoe County, Colorado or in the United States District Court of Colorado.

25. Assigns - This Contract shall be binding upon the heirs, executors, administrators, successors, survivors, and assigns of the respective parties. Neither party shall assign this Contract without written consent of the other party.

26. Complete Agreement - This Contract sets forth the entire and integrated agreement between Customer and Contractor and supersedes any and all prior agreements, representations, and negotiations. No verbal agreement or conversation with any representative or employee of Contractor, either before or after execution of the Contract, shall affect or modify any of the terms or obligations of this Contract. Any future modification of this Contract shall be made in writing and executed by Contractor and Customer.

27. Severability - If any term of this Agreement is to any extent invalid, illegal, or incapable of being enforced, such term shall be excluded to the extent of such invalidity, illegality, or unenforceability; all other terms hereof shall remain in full force and effect.